SAMPLE M&A CONTRACT C

1. Parties

Buyer: NovaTech Ventures, Inc.

Seller: QuickSoft Solutions, LLC

2. Purchase Price
USD 12,000,000 payable in cash at closing, subject only to the adjustments set out in Schedule 2.

3. Representations & Warranties
– Seller represents that it owns all assets free of liens.
– Seller warrants that the financial statements are GAAP-compliant and that there are no undisclosed liabilities.

4. Covenants
– Seller will not compete within the United States for 2 years after closing (scope limited to the business sold).
– Confidentiality obligations survive closing for 5 years.

5. Closing Conditions
– Receipt of all required regulatory approvals.
– Execution of a mutually agreed escrow agreement.

6. Indemnification
– Survival period: 18 months after closing.
– Indemnifiable losses limited to the purchase price.

7. Governing Law & Dispute Resolution
– Delaware law; arbitration in New York, ICC Rules.

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